waters due to the additional demands on ships, their systems and operation, which go beyond the existing requirements of MARPOL, and other relevant binding IMO instruments,

NOTING resolution MEPC.264(68), by which the Committee adopted the International Code for Ships Operating in Polar Waters (Polar Code) with respect to its environment-related provisions,

NOTING ALSO that the Maritime Safety Committee, at its ninety-fourth session, adopted, by resolution MSC.385(94), the International Code for Ships Operating in Polar Waters with respect to its safety-related provisions, and by resolution MSC.386(94), amendments to the 1974 SOLAS Convention to make the safety-related provisions of the Polar Code mandatory,

HAVING CONSIDERED proposed amendments to MARPOL Annexes I, II, IV and V to make

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SOURCE: MEPC.265(68).pdf
the 1974 SOLAS Convention to make the safety-related provisions of the Polar Code mandatory,

HAVING CONSIDERED proposed amendments to MARPOL Annexes I, II, IV and V to make the environment-related provisions of the Polar Code mandatory,

1 ADOPTS, in accordance with article 16(2)(d) of MARPOL, amendments to Annexes I, II, IV and V, the text of which is set out in the annex to the present resolution;

2 DETERMINES, in accordance with article 16(2)(f)(iii) of MARPOL, that the amendments shall be deemed to have been accepted on 1 July 2016, unless, prior to that date, not less than one third of the Parties or Parties the combined merchant fleets of which constitute not less than 50% of the gross tonnage of the world's merchant fleet, have communicated to the Organization their objection to the amendments;

3 INVITES the Parties to note that, in accordance with article 16(2)(g)(ii) of MARPOL, the said amendments shall enter into force on 1 January 2017 upon their acceptance in accordance with paragraph 2 above;

RESOLUTION MEPC.265(68)
(adopted on 15 May 2015)
AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1978 RELATING TO

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SOURCE: MEPC.265(68).pdf
MARPOL, the said amendments shall enter into force on 1 January 2017 upon their acceptance in accordance with paragraph 2 above;

RESOLUTION MEPC.265(68)
(adopted on 15 May 2015)
AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1978 RELATING TO
THE INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973- 2 -

4 REQUESTS the Secretary-General, for the purposes of article 16(2)(e) of MARPOL, to transmit certified copies of the present resolution and the text of the

amendments contained in the annex to all Parties to MARPOL;

5 REQUESTS FURTHER the Secretary-General to transmit copies of the present resolution and its annex to Members of the Organization which are not Parties to MARPOL.

RESOLUTION MEPC.265(68)
(adopted on 15 May 2015)
AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1978 RELATING TO THE INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973- 3 -

ANNEX

AMENDMENTS TO MARPOL ANNEXES I, II, IV AND V

ANNEX I
REGULATIONS FOR THE PREVENTION OF POLLUTION BY OIL

Chapter 1
General

Regulation 3 Exemptions and waivers

1 In paragraph 1, the words "or section 1.2 of part II-A of the Polar Code" are inserted

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SOURCE: MEPC.265(68).pdf
ANNEX I
REGULATIONS FOR THE PREVENTION OF POLLUTION BY OIL

Chapter 1
General

Regulation 3 Exemptions and waivers

1 In paragraph 1, the words "or section 1.2 of part II-A of the Polar Code" are inserted between "chapters 3 and 4 of this Annex" and "relating to construction".

2 A new paragraph 5.2.2 is added as follows:

" .2 voyages within Arctic waters; or"

3 The existing paragraphs 5.2.2 to 5.2.6 are renumbered as paragraphs 5.2.3 to 5.2.7 and the sub-paragraphs are renumbered accordingly. In the renumbered paragraphs 5.2.5 and 5.2.6, the referenced paragraph numbers "5.2.2" and "5.2.2.2" are replaced by "5.2.3" and "5.2.3.2", respectively.

4 The chapeau of the renumbered paragraph 5.2.3 is replaced with the following:

".3 voyages within 50 nautical miles from the nearest land outside special areas or Arctic waters where the tanker is engaged in:"

Regulation 4 Exceptions

5 The chapeau is replaced with the following:

"Regulations 15 and 34 of this Annex and paragraph 1.1.1 of part II-A of the Polar Code shall not apply to:"

Chapter 3
Requirements for machinery spaces of all ships

Part B
Equipment

---CHUNK---

SOURCE: MEPC.265(68).pdf
5 The chapeau is replaced with the following:

"Regulations 15 and 34 of this Annex and paragraph 1.1.1 of part II-A of the Polar Code shall not apply to:"

Chapter 3
Requirements for machinery spaces of all ships

Part B
Equipment

Regulation 14 Oil filtering equipment

6 Paragraph 5.1 is replaced with the following:

".1 any ship engaged exclusively on voyages within special areas or Arctic waters, or"

7 In paragraph 5.3.4, between the words "with in special areas" and "or has been accepted", the words "or Arctic waters" are inserted.

RESOLUTION MEPC.265(68)
(adopted on 15 May 2015)
AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1978 RELATING TO
THE INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973- 4 -

Part C
Control of discharge of oil

Regulation 15 Control of discharge of oil

8 At the end of the title for section A, the words "except in Arctic waters" are added.

9 At the end of the title for section C, the words "and Arctic waters" are added.

Chapter 4
Requirements for the cargo area of oil tankers

Part C
Control of operational discharges of oil

Regulation 34 Control of discharge of oil

---CHUNK---

SOURCE: MEPC.265(68).pdf
9 At the end of the title for section C, the words "and Arctic waters" are added.

Chapter 4
Requirements for the cargo area of oil tankers

Part C
Control of operational discharges of oil

Regulation 34 Control of discharge of oil